

KAVANAUGH, J., concurring in part

See *Teague v. Lane*, 489 U. S. 288, 311 (1989) (plurality opinion); *Griffith v. Kentucky*, 479 U. S. 314, 328 (1987). *Teague* recognizes only two exceptions to that general habeas non-retroactivity principle: “if (1) the rule is substantive or (2) the rule is a ‘watershed rul[e] of criminal procedure’ implicating the fundamental fairness and accuracy of the criminal proceeding.” *Whorton v. Bockting*, 549 U. S. 406, 416 (2007) (internal quotation marks omitted). The new rule announced today—namely, that state criminal juries must be unanimous—does not fall within either of those two narrow *Teague* exceptions and therefore, as a matter of federal law, should not apply retroactively on habeas corpus review.

The first *Teague* exception does not apply because today’s new rule is procedural, not substantive: It affects “only the manner of determining the defendant’s culpability.” *Schriro v. Summerlin*, 542 U. S. 348, 353 (2004).

The second *Teague* exception does not apply because today’s new rule, while undoubtedly important, is not a “watershed” procedural rule. This Court has flatly stated that “it is unlikely that any such rules” have “yet to emerge.” *Whorton*, 549 U. S., at 417 (internal quotation marks omitted). In “the years since *Teague*, we have rejected every claim that a new rule satisfied the requirements for watershed status.” *Id.*, at 418, 421 (rejecting retroactivity for *Crawford v. Washington*, 541 U. S. 36 (2004)); see, e. g., *Beard v. Banks*, 542 U. S. 406, 420 (2004) (rejecting retroactivity for *Mills v. Maryland*, 486 U. S. 367 (1988)); *Summerlin*, 542 U. S., at 358 (rejecting retroactivity for *Ring v. Arizona*, 536 U. S. 584 (2002)); *O’Dell v. Netherland*, 521 U. S. 151, 167–168 (1997) (rejecting retroactivity for *Simmons v. South Carolina*, 512 U. S. 154 (1994)); *Lambrix v. Singletary*, 520 U. S. 518, 539–540 (1997) (rejecting retroactivity for *Espinosa v. Florida*, 505 U. S. 1079 (1992) (*per curiam*)); *Sawyer v. Smith*, 497 U. S. 227, 241–245 (1990) (rejecting retroactivity for *Caldwell v. Mississippi*, 472 U. S. 320 (1985)); see also *Allen v. Hardy*, 478 U. S. 255, 261 (1986) (*per curiam*) (reject-